

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On 13/02/23, Mr. A.A.A. (the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint was directed against the entity DAZN SPAIN, S.L. with CIF: Doc. B85940419 (the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR), and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

The complaint is based on the fact that the complainant had subscribed to the DAZN Essential plan (sports streaming platform). On 12/02/23, he received an email from DAZN informing him of the migration of his account to Movistar and the change to a DAZN La Liga plan, adjusting to a Movistar rate. However, the user has nothing contracted with Movistar and cannot manage that change because he is not a customer of that company, thus he does not have credentials to access the Movistar platform. After contacting both, DAZN claims that the user's account is managed by Movistar, while Movistar states that it has no relationship with the user. Currently, the user's DAZN account appears to be managed by Movistar, which prevents him from making changes or canceling his subscription, as he could only do so through Movistar, which insists it has no relationship with his account. The complainant is concerned that his data has been shared with Movistar without his consent, and he cannot manage his subscription in any way.

As evidence, he provides an email with the communication of the migration of the DAZN service to Movistar+, a screenshot, and another video indicating the need to access the service through the Movistar+ user.

He also provides the transcript of the conversation held with the Customer Service of the respondent (DAZN's SAC), in which he refers to the impossibility of accessing the contracted service and receives explanations about the migration of his account to Movistar+, which do not satisfy him.

SECOND: On 13/05/23, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities in Article 58.1 of the GDPR and in accordance with the provisions established in Title C/ Jorge Juan, 6

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VII. Chapter I, Section Two, of the LOPDGDD, being aware of the following:

First: Upon consulting Telefónica de España, S.A.U. (TdE) regarding the information it holds about the claimant in relation to Movistar+, TdE states that although it retains data from previous contracts, the claimant was not a customer and is not registered for any of the Movistar+ services on the dates related to the claim.

Second: DAZN SPAIN states that, although there is a process for migrating the claimant's DAZN account to Movistar+, this occurs without the communication of personal data, and that the migration of the claimant's account from DAZN to Movistar+ took place when a third party, while keeping a user session open on Movistar+, provided the claimant's DAZN access credentials:

- "In the conversation held between AC from DAZN and the Claimant via the DAZN AC chat, the Claimant admits that he started his session on DAZN through his father's 'Tablet', who does have a

Movistar account. Given these circumstances, if the Claimant's father had contracted any telecommunications and entertainment package with Movistar that included DAZN, and had activated access to the Application through the link sent by Movistar via the 'Tablet' where the Claimant left the session open, the Claimant's father activated his access to DAZN using the Claimant's email address, thus resulting in the automatic migration of the Claimant's account to Movistar. Therefore, it is necessary to emphasize that the migration of the DAZN account to Movistar was carried out without DAZN's intervention and that during this process, the Claimant's data was not shared between DAZN and Movistar. It is again necessary to insist that DAZN cannot automatically migrate any DAZN account to Movistar."

The responding party continues to state that:

- "As for the Claimant, as previously stated in DAZN's earlier document, he was a user subscribed to the DAZN Essential Plan and during the registration process to DAZN used the email address ***EMAIL.1. As the Claimant stated to DAZN's Customer Service, he started his DAZN session through his father's 'Tablet or device', who does have a Movistar account, leaving his DAZN session open. Subsequently, the Claimant's father activated his access to DAZN (as a result of the package contracted by him with Movistar) using the Claimant's email address, thus resulting in the automatic migration of the Claimant's account to Movistar (after the Claimant's father accepted and confirmed this migration in accordance with impressions 4 and 5 attached to this document). Therefore, it is necessary to emphasize that the migration of the DAZN account to Movistar was carried out without DAZN's intervention and that during this process, the Claimant's data was not shared between DAZN and Movistar. It is again necessary to insist that DAZN cannot automatically migrate any DAZN account to Movistar without..."

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the user explicitly requests it."

Third: DAZN SPAIN provides the link ***URL.1, where it can be read:

- "If I already have a DAZN account, how can I change it to Movistar? If you already have a DAZN account, you must follow the account creation process (from the decoder, customer area, or Mi Movistar app) and when you enter the DAZN page, instead of creating a new account, enter your DAZN credentials. DAZN will identify that you already have an account created and will inform you of its conditions and the steps to follow to activate it as a Movistar customer. If you have any questions, contact DAZN."

When asked about the possibility of migrating a DAZN user account to Movistar+ without the transfer of personal data, the responding party provides the following explanation:

- "Once the Movistar customer, as indicated in the previously described process in section '1' above, obtains the right to access DAZN content, Movistar, according to its own commercial policies, provides that customer with a magic link or link ("Magic Link") that allows the Movistar customer to activate their DAZN account to view, in that case, the DAZN content in the DAZN environment or Application. This Magic Link contains an alphanumeric code created by DAZN but that DAZN does not assign to any user since, as previously indicated, DAZN does not have access to any personal data of Movistar customers. It is Movistar that assigns each of these alphanumeric codes to its customers, but DAZN also does not receive this information from Movistar."

LEGAL GROUNDS

I

Jurisdiction.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic

law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

The Fourth Additional Provision “Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws” establishes that: “The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the competencies attributed to it by other laws.”

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II

In this case, the complainant stated in their complaint that DAZN migrated their account to Movistar+, providing it with their personal data without their consent.

The responding party states that it has no records of the complainant as a Movistar+ customer on the dates of the complaint.

For its part, the responding party states that what occurred is the result of the use of the complainant's credentials in DAZN by the complainant's father, a Movistar+ customer, who, while logged into Movistar+, entered the complainant's credentials, resulting in the automatic migration of the contracted service from the complainant's DAZN account to their father's Movistar+ account, without the need for the communication of personal data.

Therefore, based on the evidence available at this time, it can be concluded that the transfer of the service noted in the complaint occurred due to the improper use of the complainant's credentials, automatically and without the transfer of personal data, for which the Director of the Spanish Data Protection Agency,

AGREES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí.

Director of the Spanish Data Protection Agency.

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